

Amendment No. 2 to SB0259

Crowe
Signature of Sponsor

AMEND Senate Bill No. 259*

House Bill No. 853

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 33-8-202(c), is amended by deleting the subsection and substituting:

(c) Notwithstanding subsections (a) and (b), and to the extent allowable by federal privacy laws and regulations:

(1) As used in this subsection (c):

(A) "Prescription records" mean documents, data, or other recorded information created, maintained, or transmitted by a licensed healthcare provider, pharmacy, or other authorized entity that relate to prescribing, dispensing, or administering of medication to a patient, including written, electronic, or verbal prescriptions, medication orders, dosage instructions, refill authorizations, dispensing logs, pharmacy records, and modifications, renewals, or cancellations of a prescription; and

(B) "Rehabilitation records":

(i) Mean records concerning a diagnosis, treatment recommendation, discharge summary, or prescribed course of action provided by a healthcare provider to a patient in connection with rehabilitation services; and

(ii) Does not include personal notes, statements, or communications originating from the patient that are documented,

interpreted, or formalized by the provider as part of the medical record.

(2) A child's parent, legal guardian, or legal custodian may access prescription records and rehabilitation records resulting from treatment provided to an unemancipated minor pursuant to this section.

(3) Notwithstanding subdivision (c)(2), a child's parent, legal guardian, or legal custodian shall not access prescription records or rehabilitation records resulting from treatment provided to an unemancipated minor pursuant to this section if the treating professional is required to report abuse of the unemancipated minor pursuant to § 37-1-403 or § 37-1-605, and the treating professional believes that access to prescription records or rehabilitation records is reasonably likely to endanger the life or physical safety of the minor.

(4) If an unemancipated minor communicates suicidal ideations to the treating professional, and the professional, using the reasonable skill, knowledge, and care ordinarily possessed and exercised by the professional's specialty under similar circumstances, has determined or reasonably should have determined that the unemancipated minor has the apparent ability to attempt suicide and is likely to attempt suicide unless prevented from doing so, then the treating professional shall, in addition to any other duties required by law, report such suicidal ideations to the unemancipated minor's parent, legal guardian, or legal custodian.

SECTION 2. Tennessee Code Annotated, Section 36-8-103(c)(4), is amended by deleting the subdivision and substituting:

(4) To access and review a child's medical records, as defined in § 63-2-101, including prescription records and rehabilitation records as defined in § 33-8-202;

SECTION 3. Tennessee Code Annotated, Section 68-11-304(i), is amended by deleting the subsection and substituting:

(i) A parent, legal guardian, legal custodian, or other person with medical decision-making authority for an unemancipated minor may access, and a healthcare provider or healthcare facility shall provide access, in accordance with § 36-8-103, to the unemancipated minor's medical records resulting from medical treatment provided without parental consent, including treatment provided pursuant to § 68-10-104(c), § 68-34-107, § 63-6-220, § 63-6-222, or § 63-6-223.

SECTION 4. Tennessee Code Annotated, Section 68-11-304(j), is amended by deleting the subsection and substituting:

(j) Notwithstanding subsection (i), a child's parent, legal guardian, or legal custodian shall not access, in accordance with § 36-8-103, the unemancipated minor's medical records resulting from treatment provided without parental consent, including treatment provided pursuant to § 68-10-104(c), § 68-34-107, § 63-6-220, § 63-6-222, or § 63-6-223, if the treating professional is required to report abuse of the unemancipated minor pursuant to § 37-1-403 or § 37-1-605, and the treating professional believes that access to medical records is reasonably likely to endanger the life or physical safety of the minor.

SECTION 5. Tennessee Code Annotated, Section 63-1-176(c)(6), is amended by deleting subdivision and substituting:

(6) An employee of a local education agency or public institution of higher education acts to control bleeding using a bleeding control kit pursuant to § 49-2-137;

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it.